

**Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT**

Writ Petition No.13293 of 2011

**Executive Engineer Vs. Punjab Labour Appellate Tribunal,
Lahore & 2 others**

J U D G M E N T

Date of hearing: 23.06.2015

Petitioner by: Mr. Aziz-ur-Rehman, A.A.G.

Respondents by: Mr. Muhammad Faisal Bashir, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.-

This writ petition is directed against the judgment dated 13.06.2011 passed by the Punjab Labour Court No. 9, Multan and judgment dated 25.07.2011 passed by the Punjab Labour Appellate Tribunal, Lahore.

2. Brief facts for disposal of this writ petition are that respondent No.3/Farooq Ahmad filed a petition under section 41 of Industrial Relation Act, 2008, before the Punjab Labour Court No. 9, Multan, for regularization of his service, claiming that he was appointed as Baildar on work charge basis vide order dated 10.05.2006 against permanent vacancy and a direction was sought to regularize his service from due date and also to pay outstanding wages. The respondent-Executive Engineer was proceeded ex-parte on 04.01.2010 and thereafter ex-parte judgment was passed on 15.02.2010. The petitioner filed an application for setting aside ex-parte judgment and the learned Labour Court, vide

order dated 14.02.2011, set aside the ex-parte judgment dated 15.02.2010. Punjab Labour Court No. 9, vide impugned judgment dated 13.06.2011, regularized the service of the respondent No.3 w.e.f. 10.05.2006. The petitioner, being aggrieved, filed appeal before the Punjab Labour Appellate Tribunal which was dismissed vide impugned judgment dated 25.07.2011. Both the impugned judgments dated 13.06.2011 and 25.07.2011, passed by Punjab Labour Court and Punjab Labour Appellate Tribunal respectively, have been assailed through this writ petition.

3. Learned A.A.G. contends that both the courts below did not take into consideration the most important fact that the respondent No.3 was not working against a permanent post, hence, the question of application of Standing Order No. 1 of West Pakistan (Industrial and Commercial Standing Orders) Ordinance, 1968 did not arise, which specifically provided that an employee would be considered as a permanent employee, if he was serving against a permanent post for a specific period. Hence, both the courts below erred in law while passing the impugned judgments. He further argued that length of period of employment by itself was not a ground for declaring the employee as permanent workman. In the end, he also submitted that the delay was liable to be condoned on the ground that the impugned judgment is absolutely illegal and without jurisdiction.

4. Learned counsel for respondents submits that appeal filed before the Punjab Labour Appellate Tribunal was barred by four days and the petitioner failed to explain the delay of each and every day. The learned Punjab Labour Appellate Tribunal has rightly dismissed the

appeal filed by the department. He also relies upon M/s Nida-e-Millat, Lahore v. Commissioner of Income Tax Zone I, Lahore (2008 SCMR 284).

5. Arguments heard and record perused.

6. Petitioner filed appeal filed before the learned Punjab Labour Appellate Tribunal with the delay of four days. Petitioner badly failed to explain the delay of each day before the Appellate Court. His only case was that the department moved the authorities for getting the permission for filing appeal in the court that caused of delay, as result of which, the appeal before the learned Punjab Labour Appellate Court Tribunal could not be filed in prescribed time. The learned Appellate Court did not accept the above explanation and dismissed the appeal filed by the petitioner with the following observations: -

“Learned counsel for the appellants has filed an application on the usual and stereo typed grounds for condonation of delay that the department moved the higher authorities for getting permission for filing appeal in the court. I am afraid this plea hardly constitutes a valid ground for the condonation of delay. The reason offered by the appellant does not appear to be inspiring. The Executive Engineer who happens to be appellant in this case could have easily sought the permission if at all it was required in a day or two but his casual and careless attitude is visible from the fact that he applied for the certified copy of the judgment on 13.07.2011 whereas the impugned judgment was passed on 13.06.2011. The courts can help only if some solid grounds are shown for condonation of delay. Only the vigilant and not the indolent can take benefit of the discretion of the court. It is now a settled law that in cases of condonation of delay

no preference can be given to the State cases. The appellant has to explain satisfactorily each days delay to the court of competent jurisdiction. No valid ground has been shown for condonation of delay.”

7. Law on the subject is very clear that delay of each and every day is to be satisfactorily explained. The reference in this regard can be made to the law laid down by the Supreme Court of Pakistan in judgments reported as Lanvin Traders, Karachi v. Presiding Officer Banking Court No.II, Karachi (2013 SCMR 1419), Worldcall Telecom Limited v. Pakistan Telecommunication Authority through Chairman (2011 SCMR 959), Lal Khan v. Muhammad Yousaf (PLD 2011 SC 657), Qaiser Mushtaq Ahmad v. Controller of Examinations (PLD 2011 SC 174), Food Department Gujranwala v. Ghulam Farid Awan (2010 SCMR 1899), M/s Nida-e-Millat, Lahore v. Commissioner of Income Tax Zone I, Lahore (2008 SCMR 284), Almas Ahmed Fiaz v. Secretary Government of the Punjab Housing and Physical Planning Development, Lahore and another (2007 PLC 64), Rehmat Din and others v. Mirza Nasir Abbas (2007 SCMR 1560).

8. In Almas Ahmad Fiaz's case (supra), the Hon'ble Supreme Court held as under: -

“It is a settled principle of law that the question of limitation under section 46 of the I.R.O. has to be rigidly construed on the well-known maxim that no party is allowed to circumvent the provisions of the statute of limitation. It is yet another principle of law that the party approaching Court of competent jurisdiction for redress of grievance beyond specified period of limitation is bound to

explain each day's delay to the satisfaction of respective forum because a valuable right accrues to the other side. See "Government of Punjab v. Muhammad Salim" (PLD 1995 SC 396), (1995. SCMR 546) "Rehmat Ullah and others v. Ulyas Khan" (1968 SCMR 975) and "Pakistan Railway v. Ghulam Sarwar" (1989 SCMR 864)."

9. In view of the aforesaid, this petition has no merit, therefore, the same is hereby **dismissed in limine**.

(Muhammad Sajid Mehmood Sethi)
Judge

Mian Farrukh

Approved for reporting